

GZ: 2020-0.764.719 dated November 25, 2020 (Case number: DSB-D124.2559)

[Note from the editor: Names and companies, legal forms and product designations, addresses (including URLs, IP and email addresses), date information, file numbers (and the like), etc., as well as their initials and abbreviations may have been abbreviated and/or altered for pseudonymization reasons. Obvious spelling, grammar, and punctuation errors have been corrected.]

DECISION

APPEAL

The Data Protection Authority decides on the data protection complaint of Dr. Elvira A*** (complainant) dated May 20, 2020 against 1) S*** University T***stadt (first respondent), 2) U*** Kliniken GmbH (second respondent), and 3) Dr. Anton V*** (third respondent), the latter represented by Mag. Peter R***, attorney in T***stadt, regarding a violation of the fundamental right to confidentiality as follows:

1. The complaint against the third respondent is upheld, and it is established that the third respondent has violated the complainant's right to confidentiality by unlawfully

a) Accessing the complainant's gynecological findings twice in May 2019 via the hospital information system (KIS) of the second respondent, and

b) Transmitting the information regarding the complainant's miscarriage ("Pregnancy - Loss due to Abortion") to N*** K***versicherung AG.

2. The complaint against the first and second respondents is dismissed as unfounded.

Legal bases: Art. 5, Art. 6, Art. 9, Art. 24 para. 1, Art. 51 para. 1, Art. 57 para. 1 lit. f, and Art. 77 para. 1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter: GDPR), OJ No. L 119 of May 4, 2016, p. 1; §§ 1 para. 1 and para. 2, 18 para. 1, as well as 24 para. 1 and para. 5 of the Data Protection Act (DSG), BGBl. I No. 165/1999 as amended.

REASONING

A. Submissions of the parties and procedural history

1. The complainant summarized in her initiating complaint dated May 20, 2020, that she had been hospitalized at the "Hospital for Women's Medicine T***stadt" due to a miscarriage on **. and **. May 2019, and that the third respondent – at that time a specialist in S*** and a specialist in O*** in training – had accessed her gynecological findings on **. May 2019 and **. May 2019 according to the hospital information system (KIS). The third respondent had furthermore stored these findings and forwarded them to N*** K***versicherung AG. There had been no treatment relationship with the third respondent, and no consent had been given for the inspection and forwarding of the highly sensitive and personal findings. There had been private contact between the third respondent and her, and he had also been considered a potential father of the deceased child; however, no partnership or cohabitation had existed. Nevertheless, the complainant and the third respondent had planned a joint trip around the time of the hospitalization, which had been canceled due to the miscarriage. By transmitting the information from the medical record, the third respondent had attempted to obtain a reimbursement of travel expenses from the insurance.

2. In her statement dated July 14, 2020, the second respondent confirmed the accesses of the third respondent to the complainant's patient file via the hospital information system (KIS). The second respondent subsequently contacted the third respondent regarding the allegation of unauthorized access; he stated in a phone call with the data protection officer employed by the second respondent that the accesses were privately motivated and not justified by his professional activity.

3. The first respondent summarized in her statement dated July 15, 2020, that the two accesses of the third respondent to the complainant's patient file were undisputed. However, the first respondent had assumed until the transmission of the documents submitted with the complaint that the access had been legitimized by the prior consent of the complainant. Only during the course of the present proceedings had they learned of the phone call between the data protection officer of the second respondent and the third respondent, in which the latter allegedly admitted that the access had occurred without prior consent from the complainant. It must now be noted that the access had occurred in no connection with the professional activity, and the third respondent must therefore bear sole responsibility for it.

4. The third respondent, represented by counsel, summarized in his statement dated July 15, 2020,

that at the time of access, he had been both the treating physician and the partner of the complainant and had been involved in all medical matters concerning the complainant. This had also included access to the complainant's patient file. Furthermore, the third respondent had been the father of the deceased fetus. It is expressly noted that no clinic document had been forwarded by him to his insurer or any other third party.

5. On August 13, 2020, an informed representative of the tour operator was interviewed by the data protection authority, with whom the complainant and the third respondent had booked a trip from ** May 2019 to ** June 2019, which was subsequently not undertaken.

6. In response to the questions from the data protection authority dated August 14, 2019, the third respondent stated in his letter dated September 10, 2020, that the claim made by the first respondent, that he had admitted in a telephone conversation that access had occurred without the complainant's consent, was incorrect. In fact, corresponding consent for the accesses he made on ** May 2020 and ** May 2020 had been present. Due to the romantic relationship between him and the complainant, as well as the fact that he had been her treating physician, there was no evidence or documentation regarding this. There was no application of the GDPR for any data processing related to the trip cancellation, as this occurred solely in connection with personal and family activities in accordance with Art. 2 GDPR. The third respondent had only printed an MRI report at the request of the complainant as her treating physician, but no document had been shared with third parties.

7. On October 5, 2020, the third respondent submitted the "Cancellation Damage Form" he filed with N*** K*** Insurance AG for the reimbursement of travel costs for the trip not undertaken from ** May 2019 to ** June 2019. The reason for the non-commencement stated in this form is "Pregnancy – Loss due to miscarriage." Furthermore, the third respondent requested that this document be excluded from the file inspection.

8. The second respondent stated in her supplementary statement dated November 11, 2020, that the third respondent had confirmed to the second respondent during a phone call in June 2019 that the complainant's consent had been present and justified this by stating that the access had been privately justified. This was not sufficient to determine whether the complainant's consent had been present, and the third respondent was unable to provide any further clarifications.

9. In a renewed statement dated November 18, 2020, the complainant summarized that both accesses had occurred without her knowledge and without her consent. The third respondent had denied until the end that there had been a forwarding of health data from her patient file to N*** K*** Insurance AG. However, in a written statement from the third respondent's lawyer to the first respondent, it was indicated that the transmission of the relevant documents for the claims processing in the context of the cancellation travel insurance had been necessary by the third respondent. It was further emphasized that at no time had there been a cohabitation between the complainant and the third respondent.

B. Subject of the Complaint

The subject of the complaint is the question of whether the respondents have violated the complainant's fundamental right to confidentiality by a) accessing the gynecological findings of the complainant on ** May 2019 and on ** May 2019, and b) transmitting information related to the complainant's miscarriage to an insurance company.

C. Findings of Facts

1. The third respondent is a specialist in S*** and a specialist in O*** in training. The first respondent is the employer of the third respondent.

2. The complainant was hospitalized for treatment due to a miscarriage at the "Hospital for Women's Medicine T***stadt" on ** and ** May 2019.

3. The third respondent accessed the medical records of the complainant via the hospital information system (KIS) on ** May 2019 and on ** May 2019. This included, among other things, gynecological findings. The hospital information system (KIS) is the central patient information system (electronic medical record) managed by the second respondent.

4. The third respondent and the complainant had a private close relationship. The third respondent was considered a potential father of the complainant's unborn child.

5. The complainant and the third respondent booked a trip through a travel agency for the early summer period. The third respondent took out cancellation insurance with N*** K***versicherung AG for this trip. The trip was subsequently canceled.

Assessment of Evidence: The findings are based on the undisputed statements of the complainant in her initiating complaint dated 20 May 2020, as well as the corresponding statements of the first respondent dated 15 July 2020, the second respondent dated 14 July 2020, and the third respondent dated 15 July 2020 and 14 August 2020.

6. In connection with the reimbursement of travel expenses, the third respondent forwarded information about the complainant's miscarriage to N*** K***versicherung AG.

Assessment of Evidence: This finding is based on the submissions of the complainant in her initiating complaint dated 20 May 2020, as well as the accompanying statement from the legal representative of the third respondent to the first respondent dated 16 September 2019, which is attached to the file (Appendix I) and in which it is stated that the third respondent could assume consent "for the review and transmission of documents to the insurance." The documents submitted with the complaint also repeatedly refer to the existence of "tacit consent." The finding is further based on the "Cancellation Damage Form" submitted by the third respondent in his statement dated 14 August 2020, which he filled out for the reimbursement of travel expenses at N*** K***versicherung AG. In this form, the third respondent states "loss due to miscarriage" as the reason for cancellation.

7. Both the access to the complainant's medical records via the hospital information system (KIS) on ** May 2019 and on ** May 2019, as well as the transmission of information about the complainant's miscarriage to the aforementioned N*** K***versicherung AG by the third respondent, occurred without the complainant's consent. Furthermore, the third respondent's access to the complainant's medical records was not related to the third respondent's professional activities.

Assessment of Evidence: The findings are based on the statements of the complainant in her letters dated 20 May 2020 and 18 November 2020. The findings that the access and transmission of information from the complainant's medical records by the third respondent were for private purposes are based on the statements of the complainant in her initiating complaint dated 20 May 2020, as well as the corresponding statements of the second respondent in her statements dated 14 July 2020 and 11 November 2020, in which she states that the third respondent indicated to her in a phone call that the access was for private purposes. In these statements, the second respondent also states that there were no indications to assume consent from the complainant, and that the third respondent could not provide any information suggesting otherwise. This is consistent with the repeated statements of the complainant from 20 May 2020 and 18 November 2020. The third respondent was unable – despite the corresponding obligation (see the legal assessment) and despite a request from the data protection authority – to provide evidence that consent from the complainant was obtained for the data use in question.

D. From a legal perspective, it follows:

1. Regarding Point 2

a) General information on the distribution of roles in data protection law

According to the understanding of the former Art. 29 Data Protection Working Party, data processing by a natural person working for a company and using the data within the company's activities is attributed to the company as the responsible entity (cf. Art. 29 Data Protection Working Party, Opinion 1/2010 on the terms "controller" and "processor," WP 169, 00264/10/DE p. 21).

b) In the Matter

As can be seen from the factual findings, the third respondent (at least at that time) was employed by the second respondent; however, access to the medical records of the complainant was made for purposes that lie outside the activities of the second respondent (and also the first respondent).

The subsequent data transfer to the travel insurance also occurred outside the influence of the first and second respondents.

Since the third respondent alone made the decision to access the complainant's medical records for personal reasons and to transmit the information related to a miscarriage to N*** K***versicherung AG, only he can be qualified as the responsible party under Art. 4 No. 7 GDPR.

There are also no indications – and this was not asserted otherwise – that the data access by the third respondent was made possible by a lack of security measures according to Art. 32 para. 1 GDPR on the part of the first and second respondents (see the decision of the Data Protection Authority dated October 9, 2019, GZ: DSB-D130.073/0008-DSB/2019, according to which a violation of Art. 32 GDPR can also lead to a violation of the fundamental right to confidentiality).

The complaint against the first and second respondents was therefore to be dismissed (due to lack of status as responsible parties).

2. Regarding Point of Decision 1

a) On the Scope of the Right to Confidentiality

According to § 1 para. 1 DSG, everyone has the right to confidentiality of their personal data, provided there is a legitimate interest in it. The existence of such an interest is excluded if data cannot be attributed to the affected person due to their lack of traceability.

In this context, the third respondent invokes the exception provision stipulated in Art. 2 para. 2 lit. c GDPR (the so-called "household exception") and argues that the accesses to the gynecological findings of the complainant and the subsequent data transfer to N*** K***versicherung AG occurred solely in the exercise of personal or family activities.

According to Art. 2 para. 2 lit. c GDPR, the GDPR does not apply to the processing of personal data by natural persons for the exercise of exclusively personal or family activities.

The Data Protection Authority has already stated that the GDPR and, in particular, the exception provisions and principles enshrined therein must be applied to interpret the right to confidentiality (see the decision of the DSB dated October 31, 2018, GZ DSB-D123.076/0003-DSB/2018).

Art. 3 para. 2 second dash of Directive 95/46/EC (now Art. 2 para. 2 lit. c GDPR) is to be interpreted as only concerning activities that belong to the private or family life of private individuals. In this respect, an activity cannot be regarded as exclusively personal or family in the sense of this provision if it involves making personal data accessible to an unlimited number of persons, or if it extends even partially into the public sphere and thus targets an area outside the private sphere of the person processing the data (see Judgment of the CJEU of July 10, 2018, C-25/17, para. 42 with references).

Art. 2 para. 2 lit. c GDPR is to be seen as a consequence of Art. 7 EU Charter of Fundamental Rights (Art. 8 ECHR), which aims to protect privacy from interference, whether by the state, a company, or a private individual. Data processing for the exercise of exclusively personal or family activities requires that the processor pursues exclusively personal or family purposes (see Zukinc, The Scope of the Household Exception of the GDPR Using the Example of Social Online Networks and Image Captures, in Jahnel, Data Protection Law, Yearbook 2019, 61).

In the present case, however, the data use by the third respondent did not occur – as explicitly required by the wording of Art. 2 para. 2 lit. c GDPR – "exclusively" within the framework of personal or family activities, as the information about the complainant's miscarriage was ultimately used for an economic purpose, namely for a travel cost reimbursement.

The mere fact that there was a close relationship with the complainant in the past cannot, in the opinion of the Data Protection Authority, lead to the application of Art. 2 para. 2 lit. c GDPR:

From another perspective, any data processing – detached from the context – within a circle of friends or family would be excluded from the scope of the fundamental right to confidentiality and the GDPR. Such an interpretation would also contradict the established case law of the CJEU, according to which exceptions and restrictions of the fundamental right to data protection must be limited to the absolutely necessary minimum (see Judgment of the CJEU of February 14, 2019, C-345/17, para. 64 with references) and according to which – given the purpose of now Art. 9 para. 1 GDPR – a broad protection scope for health data must be assumed (see the Judgment of the CJEU of November 6, 2003, C-101/01, Lindqvist para. 50).

As an interim conclusion, it should therefore be noted that the scope of § 1 para. 1 DSG is open and the third respondent is to be regarded as the data protection responsible party according to Art. 4 No. 7 GDPR (see above).

b) Regarding the Legality of Data Use

Restrictions on the right to confidentiality are permissible according to § 1 para. 2 DSG when personal data is used in the vital interest of the data subject, the data subject has given their consent (or, in the

terminology of the GDPR: permission), when there is a qualified legal basis for the use, or when the use is justified by overriding legitimate interests of a third party.

In this context, it should be noted that in the present case, health data (specifically: gynecological findings) were used, which is why – following the concept of Art. 9 para. 2 GDPR – the condition of "legitimate interests" is not applicable.

Vital interests of the complainant or a qualified legal basis are also not applicable, and this was not asserted by the third party respondent.

It is questionable whether an explicit consent (Art. 9 para. 2 lit. a GDPR) from the complainant exists for the data use in question:

As can be seen from the factual findings, there is no consent from the complainant for the accesses to the gynecological findings on ** May 2019 and ** May 2019, nor for the transmission of information related to the miscarriage.

In addition to the evidentiary assessment made in the context of the factual findings, it should be explicitly stated that it is the responsibility of the data controller, in accordance with their accountability under Art. 5 para. 2 GDPR in conjunction with Art. 24 para. 1 GDPR, to provide proof of compliance with the principles and the legality of the processing – and this includes proof of obtaining consent. Such proof was, however, not provided by the third party respondent – despite an explicit request from the data protection authority.

As a result, it must be assumed that the data processing in question is not justified by any permission clause under Art. 9 para. 2 GDPR and therefore occurred unlawfully.

It was therefore decided accordingly.